

“No Middle Ground”: Ktunaxa v British Columbia (Forests, Lands and Natural Resource Operations)

Gabriel Boothroyd-Roberts

April 19, 2018

Paper accompanying the video / audio production “No Middle Ground” on attached USB stick and
available for private streaming at vimeo.com/265456147, password: accommodation

Law 353D

Aboriginal and Treaty Rights Litigation

Professor Michael Jackson

In the piece “No Middle Ground”, I explore the Supreme Court of Canada (SCC) decision in *Ktunaxa v British Columbia (Forests, Lands and Natural Resource Operations)*.¹ Using audio from the SCC hearing of the appeal, visual montage, and original music, I reframe the Court’s descriptions of the Ktunaxa’s so-called “no middle ground” position, arguing they are more apposite for describing the colonial approach to Indigenous land. In the artistic work I have intentionally taken the judge’s words out of context and provided them with a meaning that was not originally intended. In this paper, I take a critical approach to the Court’s actual reasoning, as displayed by the written decision and by the judge’s statements during the appeal hearing. In the sections below, I introduce the case and then briefly discuss the Court’s resolution of the Ktunaxa’s *Charter* claim. I then focus on the issue of accommodation, showing how the decision displays apparent contradictions between the Ktunaxa’s purported stance that accommodation was impossible, the Court’s recognition of the accommodation the Ktunaxa actually sought, and the assertion that accommodation had already occurred. Next, I briefly consider a possible basis for an Indigenous-led approach to consultation and accommodation. Finally, I describe my artistic method and intent in the piece “No Middle Ground”.

Introduction

In the early 1990s, proponents began seeking regulatory approval for a new ski resort in the Jumbo Valley in southeastern British Columbia (BC). As part of this process, consultations began with First Nations in the area, including the Shuswap, who eventually supported the project, and the Ktunaxa. The Ktunaxa engaged in numerous consultations with government and project proponents but, nevertheless, expressed the conviction that the ski resort could not proceed as it would cause irreparable harm to the Grizzly Bear Spirit that lives in Qat’muk, where the resort was planned. In 2010, the Ktunaxa issued the Qat’muk Declaration, which expresses the Ktunaxa’s views regarding the future

¹ 2017 SCC 54, [2017] 2 SCR 386 [Ktunaxa].

of the area, including that no permanent structures can be built within the area.² In 2012, BC's Minister of Forests, Lands and Natural Resource Operations approved the ski resort project and, subsequently, the Ktunaxa sought judicial review of that decision, alleging that it infringed their section 2(a) right to freedom of religion under the *Charter of Rights and Freedoms*³ and, due to insufficient consultation and accommodation, infringed their aboriginal rights under section 35.⁴

After the BC Supreme Court and Court of Appeal ruled against them, the Ktunaxa appealed to the SCC. The majority, in a decision written by Justices McLachlin and Rowe, ruled that the Minister's decision did not infringe the Ktunaxa's section 2(a) *Charter* rights because it is only practices and beliefs that are protected, not the objects of those beliefs. Regarding the section 35 claim, the Court unanimously decided that the Minister's conclusion he had adequately consulted and accommodated the Ktunaxa was reasonable, with the majority citing the length of consultations, the fact that "[m]any changes had been made to the project to accommodate the Ktunaxa's spiritual claims", and the Ktunaxa's position that they could not accept construction of the resort, which made further consultation futile.⁵

In analysing this case I have relied on both the written decision and statements made by judges at the SCC appeal hearing. This resulted, in part, from my focus on the judge's words in the creation of my artistic piece, which provided, I believe, a fuller understanding of the judges' perspective. The notion that oral hearings provide additional insight into the judicial decision-making process has been argued by a number of commentators, and the principle of orality, long-standing in English courts, is similarly based on the idea that it allows for greater public scrutiny of the judicial process.⁶ As Professor

² Ktunaxa Nation, "Qat'muk Declaration", online: <www.ktunaxa.org/who-we-are/qatmuk-declaration>.

³ Part I of the *Constitution Act*, 1982, being Schedule B to the *Canada Act 1982* (UK), 1982, c 11.

⁴ The *Constitution Act*, 1982, being Schedule B to the *Canada Act 1982* (UK), 1982, c 11

⁵ *Ktunaxa*, *supra* note 1 at para 87.

⁶ Mark R Kravitz, "Written and Oral Persuasion in the United States Courts: A District Judge's Perspective on Their History, Function, and Future" (2009) 10 J App Prac & Process 247.

Martineau argues, judges “demonstrate by their questions and comments how their thinking is running, what is bothering them about counsel's arguments on the facts and the law, and how they are slowly coming to a conclusion by accepting this and rejecting that.”⁷ In the sections below, I attempt to use this insight to analyse the Court’s decision in *Ktunaxa*.

The *Charter* and an “absolute right”

In the majority’s written decision, it is clear that the Ktunaxa’s refusal to accept construction of the ski resort in any form was perceived by the judges as an intransigent position, with the Ktunaxa described as making an “absolute claim”⁸ and adopting an “absolute position”⁹ that involved “no middle ground”.¹⁰ A review of the appeal hearing particularly highlights the focus on this aspect of the case, which was notable for its sheer frequency: combined Justices McLachlin, Abella, and Moldaver stated “no middle ground” seven times during the one hour of submissions from Ktunaxa’s counsel, and made many other similar references to the Ktunaxa’s staunch opposition to the project.¹¹ The judges also made it clear that this purportedly obstinate position of the Ktunaxa was a central barrier to resolving the appeal in their favour, both in regard to the Section 35 and the freedom of religion claim. Beyond its potential relevance to a balancing under section 1, McLachlin indicated that the Ktunaxa claim to an “absolute right” was inconsistent with the *Charter* and, therefore, the court should not recognize the claim:

If you have a sacred site, you have a sacred site and that’s it... other interests are out of the picture if we extend 2(a) to protect a sacred site... And wherever I go in this case I keep coming

⁷ Robert J Martineau, *Appellate Justice in England and the United States: A Comparative Analysis* (Buffalo, NY: William S Hein & Co, 1990) at 103.

⁸ *Ibid* at para 43.

⁹ *Ibid* at para 87.

¹⁰ *Ibid* at para 36.

¹¹ My own counting from the archived webcast of the hearing: “Webcast of the Hearing on 2016-12-01: Ktunaxa Nation Council and Kathryn Teneese, on their own behalf and on behalf of all citizens of the Ktunaxa Nation v. Minister of Forests, Lands and Natural Resource Operations, et al.”, online at: <<https://www.scc-csc.ca/case-dossier/info/webcastview-webdiffusionvue-eng.aspx?cas=36664&id=2016/2016-12-01--36664&date=2016-12-01&fp=n&audio=n>> [*Ktunaxa* SCC Hearing].

back to the ‘no middle ground’ and how that fits in with the *Charter* or even section 35 because all of those are built and premised, the section 2(a) right is premised, on the possibility of balancing with other rights...¹²

This reasoning was not mentioned in the majority decision, which resolves the section 2(a) question by stating that the *Charter* protects the freedom “to hold a belief and to manifest that belief” and not “the spiritual focal point of worship”¹³ without evincing concern over the creation of an “absolute right”.

What is accommodation?

The duty to consult and accommodate Indigenous peoples whose “unproven” rights may be infringed was established in *Haida Nation v. British Columbia (Minister of Forests)*.¹⁴ In that decision, the Court described accommodation as a “process of balancing interests, of give and take” and as “seeking compromise in an attempt to harmonize conflicting interests and move further down the path of reconciliation”.¹⁵ Quoting *Haida Nation*, the *Ktunaxa* decision repeatedly describes the process of accommodation as one of “give and take”.¹⁶ The judges, however, in their statements at the appeal hearing and in their written decision, display a narrow understanding of the scope of this process. The Court seems to focus solely on the ski resort proposal and ignore the wider context in which the project would take place. Within this limited frame of reference, the judges state that “many accommodations were made with respect to Ktunaxa spiritual concerns”¹⁷ based on a realignment and resizing of the proposed resort, the creation of a wildlife management plan, and access rights for the Ktunaxa.¹⁸

¹² *Ktunaxa* SCC Hearing, *supra* note 11.

¹³ *Ktunaxa*, *supra* note 1 at para 71.

¹⁴ 2004 SCC 73, [2004] 3 S.C.R. 511 [*Haida*].

¹⁵ *Ibid* at paras 48-49.

¹⁶ *Ktunaxa*, *supra* note 1 at paras 80, 114.

¹⁷ *Ibid* at para 112.

¹⁸ *Ibid* at para 47.

conversely, the Ktunaxa's rejection of the proposal was characterized as "an uncompromising position"¹⁹ demonstrating an attitude of "give us everything we want".²⁰

Seen in any reasonable context, the notion that the Crown has significantly accommodated the Ktunaxa while the Ktunaxa have adopted "an uncompromising position" is, I would argue, absurd. The Ktunaxa's factum points out that the "Ktunaxa are not generally opposed to development and have worked with the Crown and its Ministries in a collaborative and open manner, engaging in land and resource management and development throughout the Ktunaxa territory."²¹ In the appeal hearing, Ktunaxa's counsel pointed out that the Ktunaxa have taken no issue with heli-skiing and other activities within Qat'muk and have not opposed Panorama Mountain Resort, which lies on the outskirts of the area.²² The Court, in its decision, did not address this point, or consider in any other way the larger context of the Ktunaxa's relationship to the Crown. Described in terms of the "give and take" called for by *Haida Nation*, the Crown has "taken" Ktunaxa sovereignty, territory, and culture,²³ and the Ktunaxa have (forcibly) "given" these all to the Crown. One such "taking" by the Crown specifically identified in the Ktunaxa's factum was the damming of the Columbia river, which extirpated salmon from their territory and had a devastating effect on their community.²⁴ An intervener makes a similar point regarding the necessity of context in considering the Ktunaxa's *Charter* rights, arguing that the "ongoing, cumulative effects of past government conduct" must be considered by the Court.²⁵

Even within the limited frame that informs the Court's understanding of accommodation, there seems to be some confusion about what the concept means. The majority decision states, "the Ktunaxa

¹⁹ *Ibid* at para 6.

²⁰ *Ktunaxa* SCC Hearing, *supra* note 11.

²¹ *Ktunaxa*, *supra* note 1, factum of the Appellant at para 7.

²² *Ktunaxa* SCC Hearing, *supra* note 11.

²³ The Ktunaxa's factum and an intervener both identified ways in which culture has been taken from Indigenous peoples, including residential schools and the banning of traditional practices and forms of knowledge transmission: *Ktunaxa*, *supra* note 1, Appellant's factum at para 21; *Ktunaxa*, *supra* note 1, factum of the intervener, Central Coast Indigenous Resource Alliance at paras 17-21.

²⁴ *Ktunaxa*, *supra* note 1, factum of the Appellant at para 21.

²⁵ *Ktunaxa*, *supra* note 1, factum of the intervener, Central Coast Indigenous Resource Alliance at para 24.

issued the Qat'muk Declaration in November 2010 declaring that no accommodation was possible"²⁶ However, while the declaration states that permanent structures in Qat'muk are unacceptable, it also "invite[s] other governments and stakeholders to participate in developing a management plan for Qat'muk" and states that the area will continue to be shared with "non-Ktunaxa when such use is respectful of Ktunaxa spiritual values". The Declaration makes no reference to the impossibility of accommodation. In addition, Ktunaxa's factum in the SCC appeal did not argue that no accommodation was possible but, rather, that the Minister had not provided "accommodation to protect the Ktunaxa ability to exercise spiritual practices which rely on a sacred site and require its protection."²⁷

Clearly, to the Ktunaxa, accommodation was possible – the ski resort could not be approved. The majority, in fact, recognized this in its decision when it stated that the Ktunaxa asked for "a specific accommodation — no permanent construction."²⁸ Nevertheless, in the written decision and during the appeal hearing,²⁹ there were repeated references to the supposed impossibility of accommodation. This contradiction, between the Court's recognition of the accommodation the Ktunaxa wanted and the statement that accommodation was impossible, could perhaps be explained if the statement that "no accommodation was possible" was interpreted as meaning "no accommodation could take place that would satisfy the Ktunaxa's concerns while allowing construction of the ski resort in the Jumbo Valley to proceed". Nevertheless, the judges' failure to clearly delineate the nature of the accommodation issue results in obfuscation. Rather than calling attention to the Crown's refusal to consider the accommodation the Ktunaxa requested, it is the Ktunaxa who are blamed for a breakdown in negotiations.

²⁶ *Ktunaxa*, *supra* note 1 at para 108.

²⁷ *Ktunaxa*, *supra* note 1, factum of the Appellant at para 135.

²⁸ *Ktunaxa*, *supra* note 1 at para 94, emphasis removed. Also see paragraphs 100 and 114.

²⁹ Some variation on this theme occurs eight times throughout the written decision and was stated at least seven times in the course of the appeal hearing.

Another factor that clearly weighed against the Ktunaxa in the Court's decision was the alleged recency of their opposition to construction of the ski resort. At the appeal hearing, the judges spent considerable time questioning Ktunaxa's counsel regarding the apparent change in negotiating position, and this change was repeatedly emphasized in the written decision. The written decision did not refer to the evidence referred to in the Ktunaxa's factum and raised by counsel at the appeal hearing as to the Ktunaxa's clear and firm opposition to the project at the time of its initial proposal. Nor did the decision refer to the explanation offered by Ktunaxa's counsel as to why, despite this opposition, the Ktunaxa engaged in consultation, seemingly with the intent of finding a way in which the project could proceed: *Haida Nation* creates an obligation on Indigenous peoples to engage in such processes. The Court's reasoning in Ktunaxa seems to indicate that an Indigenous people's willingness to consider a proposed project restricts their right to later oppose it, but, at the same time, firm opposition is a demand for an "absolute right" that is inconsistent with the Constitution.

Despite the Court's declaration that accommodation was impossible, the written decision repeatedly states that accommodation had actually occurred.³⁰ It seems that the Court recognized that the Ktunaxa did not believe accommodation was possible short of rejecting the resort, yet was of the opinion that "many accommodations were made with respect to Ktunaxa spiritual concerns".³¹ These statements imply that accommodation can completely ignore the Indigenous perspective, which, in this case, was that construction of the ski resort in any form would mean the Ktunaxa's "freedom to believe what we believe about the place and to continue our associated ceremonies will mean nothing".³² Though *Haida Nation* and subsequent jurisprudence have held that the Crown is entitled to make decisions without Indigenous consent, the Court's position in this case that accommodations had taken

³⁰ *Ktunaxa*, *supra* note 1. The majority cites the accommodation measures instituted by the province and the ski resort developer in paragraphs 33, 47, 48, 87, 91, 108, and 112.

³¹ *Ktunaxa*, *supra* note 1 at para 108.

³² Affidavit #1 of Chris Luke Sr., sworn October 23, 2012, quoted in *Ktunaxa*, *supra* note 1, factum of the Appellant at para 2.

place, despite these being meaningless (or nearly meaningless) to the Indigenous people concerned, is a disingenuous approach. Such an interpretation of appropriate accommodation undermines the Court's decision in *Haida Nation* that consultation and accommodation must be sufficient to "effect reconciliation between the Crown and the Aboriginal peoples with respect to the interests at stake".³³ In my view, a court cannot legitimately assess the Crown's efforts at reconciliation while ignoring the Indigenous perspective and the wider context of Indigenous-Crown relations.

One way in which a court could attend to the Indigenous perspective is by looking to Indigenous efforts to achieve reconciliation. While the Court in *Ktunaxa* characterized the Qat'muk Declaration as precluding the possibility of accommodation, it could be seen as a pathway to Indigenous-led consultation and accommodation in its call for collaboration and a balancing of interests. Given the power imbalance between the Crown and Indigenous peoples and the history of colonial domination, processes of reconciliation may require ceding significant control to Indigenous people. In fact, the SCC's strongest declaration of Indigenous territorial rights, in its finding of aboriginal title in *Tsilhqot'in Nation v. British Columbia*,³⁴ has begun negotiations that seem more likely to generate true reconciliation than the duty to consult and accommodate. Since that decision, the Tsilhqot'in Nation and the BC provincial government have agreed to the *Nenqay Deni Accord*, which sets forth a "comprehensive framework for longer-term negotiations to reconcile the rights, interests and goals of the Tsilhqot'in Nation and British Columbia in Tsilhqot'in Territory" and states that "the Parties will avoid adversarial positions in their engagement with each other and jointly address challenges and achieve progress through respectful engagement, mutual understanding and a spirit of collaboration."³⁵ Yet, the Court cannot see that the Ktunaxa's own declaration of territorial rights could lead to such a process of collaboration involving

³³ *Haida*, *supra* note 14 at para 45.

³⁴ 2014 SCC 44, [2014] 2 SCR 257.

³⁵ *Nenqay Deni Accord: The People's Accord* (2016), online: <www.tsilhqotin.ca/PDFs/Nenqay_Deni_Accord.pdf>, s G, 4.2.

mutual respect. Instead, the Ktunaxa are characterized as taking a position of “give us everything we want”.³⁶

“No Middle Ground”

A major factor that, I think, underlies the Court’s decision was the way in which the Ktunaxa relate to Qat’muk. If this area were being “used” by the Ktunaxa in a way cognizable to the judges, such as for habitation or resource extraction, the government and the courts would very likely have treated the Ktunaxa’s claim and asserted rights differently. The lack of recognition for the Ktunaxa’s relationship with Qat’muk can, in my view, be understood as part of the long-standing colonial approach to Indigenous land. Land uses that do not conform to Western norms are seen as inherently illegitimate. The Court’s interpretation of consultation and accommodation is, in my view, related to this fundamental idea regarding land and an unwillingness to hinder land-based economic development. As Dene scholar Glen Coulthard writes, “in the Canadian context, colonial domination continues to be structurally committed to maintain—through force, fraud, and more recently, so-called ‘negotiations’—ongoing state access to the land and resources that contradictorily provide the material and spiritual sustenance of Indigenous societies on the one hand, and the foundation of colonial state-formation, settlement, and capitalist development on the other.”³⁷ Though there are, of course, individual court decisions that prioritize Indigenous land interests over resource extraction to some extent,³⁸ the continuing social structure and political economy of Canada deeply depends on the containment of Indigenous rights within firm limits.

My intent with this piece was to place the words of the Justices in *Ktunaxa* in a new context, showing how these words more accurately describe the settler colonial approach to Indigenous land

³⁶ *Ktunaxa* SCC Hearing, *supra* note 11.

³⁷ Glen Sean Coulthard, *Red Skin, White Masks: Rejecting the Colonial Politics of Recognition*, (Minneapolis: University of Minnesota Press, 2014) at 7.

³⁸ E.g., *Tsilhqot’in Nation v. British Columbia*, 2014 SCC 44, [2014] 2 SCR 257.

rather than the position of the Ktunaxa. To this end, I combined audio and a few brief visual clips of judges' statements from the appeal hearing³⁹ along with footage⁴⁰ showing aspects of the inexorable process of settler colonialism that has continued to use and abuse Indigenous lands, processes that deny the possibility of accommodation. For example, Justice Moldaver's statement that "there could not be any middle ground here, there could not be any accommodation" and Chief Justice McLachlin's statement that "other interests are out of the picture"⁴¹ seems far more apt for describing this process of ongoing primitive accumulation, rather than the position of the Ktunaxa.

Beyond simply being visual materials that assist in demonstrating this point, many of the videos that I have used are themselves political statements intended to promote or justify resource extraction, urbanization, and other forms of colonial use of land. My intent was to recontextualize both the judges' words and these political messages, juxtaposing them together to tell a story radically different than either intended to tell. To this end, I have used layered visuals, combining multiple scenes of logging old growth forests, open pit coal mining, ski chalet construction, condominium towers, dam building, and other symbols of Canadian sovereignty to show the diverse, yet interconnected, pathways through which these processes take place. Most of the footage is derived from activities taking place in BC. While I have incorporated historical and modern footage, I have taken a broadly non-chronological approach, combining these time periods in short succession in an effort to show the very brief history of colonialism on this land.

"No Middle Ground" is the first video I have edited and I was unfamiliar with the lexicon of art criticism that might describe my method. Since creating the piece, I have discovered that it falls into the category of "found footage filmmaking", which "refers to the practice of appropriating pre-existing film footage in order to denature, detourn or recontextualize images by inscribing new meanings onto

³⁹ See Appendix A, *infra*, for a discussion of copyright in relation to my use of video materials.

⁴⁰ I list the sources of the video materials used in this piece in Appendix B, *infra*.

⁴¹ *Ktunaxa* SCC Hearing, *supra* note 11.

materials through creative montage.”⁴² Film studies professor Paul Arthur describes the history of this form of filmmaking, which dates from the 1920s, one tendency of which involves the “recalibration or inversion of scenes culled from ‘official’ newsreels and more marginal materials”.⁴³ These descriptions aptly describe the intent of my efforts.

While the visuals consist of found footage, the music is my own. Aside from the statements of SCC judges from the *Ktunaxa* hearing, I have composed and performed on guitar, keyboards, bass, and programmed drums all other sounds heard in the piece. My intent was to convey a sense of foreboding related to the unsustainability of the relationship to land and Indigenous peoples conveyed in the visuals and in the judges’ recontextualized words. The use of sudden crescendos denotes the speed and forcefulness of these processes while otherworldly sounds transmit their foreignness on this land.

I end the piece with Justice Moldaver’s words “it’s vital to everything we are” echoing into background with multiple simultaneous images that recall the earlier scenes of colonial land use. Justice Moldaver made this statement in describing the position of the *Ktunaxa*, declaring that such a position made it impossible to engage in a balancing of multiple interests. I argue here that the statement “vital to everything we are” could well be describing the colonial state and its insatiable need to put more land to a particular form of economic use. In my view, justly balancing Indigenous and non-Indigenous interests is impossible while such a relationship with land continues to be privileged by the courts, governments, and society at large.

⁴² Eli Horwatt, “A Taxonomy of Digital Video Remixing: Contemporary Found Footage Practice on the Internet” in Iain Robert Smith, ed, *Cultural Borrowings: Appropriation, Reworking, Transformation* (Scope, 2009) 88, online: <clublum.com/images/Scope-Cultural_Borrowings_Final%20clublum.pdf#page=88>.

⁴³ Paul Arthur, “The Status of Found Footage” (1999) 20:1 *Spectator* 57, online: <cinema.usc.edu/assets/099/15897.pdf> at 59.

Appendix A

Copyright Issues

The Supreme Court of Canada's website, under the heading "Terms and Conditions" and under the subheading "Copyright / Permission to Reproduce", states the following:

Webcasts - Restrictions

Webcasts of Supreme Court of Canada proceedings may not be broadcast, rebroadcast, transmitted, reproduced, communicated to the public by telecommunication, or otherwise made available in whole or in part in any form or by any means, electronic or otherwise, or stored in whole or in part in any information storage and retrieval system, without the prior written authorization of the Supreme Court of Canada.⁴⁴

I believe, however, that my use of content derived from the SCC Webcasts in my audio / video production falls under section 29 of the *Copyright Act*,⁴⁵ which states "Fair dealing for the purpose of research, private study, education, parody or satire does not infringe copyright." My purpose in using the Webcast material is for education and for satire. In *Society of Composers, Authors and Music Publishers of Canada v. Bell Canada*, the Supreme Court of Canada characterized fair dealing as a "users' right" that "allows users to engage in some activities that might otherwise amount to copyright infringement" and stated that "an important goal of fair dealing is to allow users to employ copyrighted works in a way that helps them engage in their own acts of authorship and creativity".⁴⁶ I also believe my use of the Webcast material falls under section 29.21 of the *Copyright Act*, allowing the use of copyrighted works in non-commercial user-generated content. I cannot conceive of how the sweeping ban on reproduction "in any form or by any means" articulated in the "Webcast- Restrictions" could overcome the terms of the *Copyright Act*.

⁴⁴ "Terms and Conditions", online: <<https://www.scc-csc.ca/terms-avis/notice-enonce-eng.aspx>>.

⁴⁵ RSC, 1985, c C-42.

⁴⁶ 2012 SCC 36, [2012] 2 SCR 326 at paras 11 and 21.

Though the “Webcast – Restrictions” could conceivably be interpreted as a term of a contract that is entered into by using the Supreme Court of Canada website, the “Terms and Conditions” do not make any explicit reference to the formation of a contract or agreement, nor do the “Terms and Conditions” explicitly make use of the website conditional upon acceptance of the terms. In addition, the “Webcast – Restrictions” are stated under the subheading “Copyright / Permission to Reproduce”, which implies that they pertain to copyright issues rather than forming the term of a contract. The Terms and Conditions also include many statements that do not appear in any way contractual, such as an “Accessibility Notice”. I have also reviewed the *Rules of the Supreme Court of Canada*, SOR/2002-156 and the Notices to the Profession issued thereunder and found nothing that would restrict use of this content.

The use of other video materials I used in this piece, which were derived from YouTube and cited in Appendix B, are clearly authorized by sections 29 and 29.21 of the *Copyright Act* as described above. I do not intend to distribute this work or make it available in any form other than submitting it to Professor Michael Jackson for the purposes of fulfilling the requirements of Law 353D

Appendix B

Video materials used in my production of “No Middle Ground”

Canadian Broadcasting Corporation, “The National”, published on YouTube as “Jumbo Glacier Resort on CBC” (2012), online: <www.youtube.com/watch?v=uo9uEAfGI0s>.

Canadian Government Motion Picture Bureau. “Big Timber” (1935), published on YouTube as “Big Timber - A Canadian Government film about BC's Forest Industry from 1935” by BC History, online: <www.youtube.com/watch?v=c35PEJCMG1w&t>.

Harbick, William. “Vancouver B.C. May 7th 1907”, published on YouTube by RhettRowe under the title “Vancouver 1907” (2011), online: <www.youtube.com/watch?v=vzjRs3ARo0g>.

Supreme Court of Canada. “Webcast of the Hearing on 2016-12-01: Ktunaxa Nation Council and Kathryn Teneese, on their own behalf and on behalf of all citizens of the Ktunaxa Nation v. Minister of Forests, Lands and Natural Resource Operations, et al”, online: <www.scc-csc.ca/case-dossier/info/webcastview-webdiffusionvue-eng.aspx?cas=36664&id=2016/2016-12-01--36664&date=2016-12-01&fp=n&audio=n>.

Waggoner, Nick (director). “Jumbo Wild: The Movement (Preview Featurette)” (2015) Sweetgrass Productions, online: <www.youtube.com/watch?v=0XNBqe446uY&t>.

“Allison Logging - Coastal Logging in the early 20th Century” (2012), published on YouTube by Crown Isle, online: <www.youtube.com/watch?v=I0K5XwmGmuw&t>.

“Amazing Forest Logging Machines” (2017), published on YouTube by World of Tractors, online: <www.youtube.com/watch?v=J1IbIM3NHRM&t>.

“A Typical British Columbia Logging Operation: [incomplete] (1929)” (2015), published on YouTube by Library and Archives Canada, online: <www.youtube.com/watch?v=wdGoVGhJS7A&t>.

“Baxter Creek (Whistler) New Home Construction Time Lapse” (2012), published on YouTube by billinthemountains, online: <www.youtube.com/watch?v=_1u9lwx0iKM>.

“Canadian Flag 4K”, published on YouTube by Storyhive, online:

<www.youtube.com/watch?v=bsYHszZGSEM&t>.

“History of Vancouver, B.C. Canada” (2013), published on YouTube by City of Vancouver, online:

<www.youtube.com/watch?v=WhHv3zDMKqM&t>.

“Mining Week in Sparwood BC” (2012), published on YouTube by Higher Path - Body Mind Health -

Angela Poch, online: <www.youtube.com/watch?v=UwOH1my_85c>.

“Mount Polley Mine Trailings Pond Breach” (2014), published on YouTube by Cariboo Regional District,

online: <www.youtube.com/watch?v=M1YgX2jXnpA&t>.

“Open Cut Blasting Vol 3”, published on YouTube by Bayou Barry, online:

<www.youtube.com/watch?v=r_6_p4zQFEc&t>.

“Save BC’s Endangered Old-Growth Forests & Forestry Jobs!” (2013), published on YouTube by Ancient

Forest Alliance, online: <www.youtube.com/watch?v=z6YTizBF-jE>.

“Site C Construction” (2014), published on YouTube by BC Hydro, online:

<www.youtube.com/watch?v=hSHvWSMtl4>.

“Site C Construction Progress” (2017), published on YouTube by BC Hydro, online:

<www.youtube.com/watch?v=ro52pGJCF6Q>.

“SMS West - Teck Greenhills - Komatsu 930E-4 Electric Truck” (2015), published on YouTube by

Construction Publications, online: <www.youtube.com/watch?v=541YDSOVyTI>.

“Whistler Blackcomb Peak 2 Peak Gondola Time Lapse” (2008), published on YouTube by Peter

Landsman, online: <www.youtube.com/watch?v=CedQfX1-vu4&t>.